HIST 350 · GROUP 4 · MORGAN STATE UNIVERSITY

CASE FILE 01/10 · 1619 → PRESENT

THE NAME CHANGES. THE FUNCTION DOES NOT.

> *“Slavery was abolished, but the logic of* **controlling and extracting** *from Black bodies was rebuilt in new legal form.”*

OPENING QUESTION / WHY THIS BOARD

If slavery was abolished in 1865, ***why did prisons become overrun with Black bodies?***

1619 SLAVERY — 1865 13TH — 1865–66 BLACK CODES — 1868 CONVICT LEASING — 1890S JIM CROW — 1971 MASS INCARCERATION — 2000S ALGORITHM

1619–1865 · CHATTEL SLAVERY

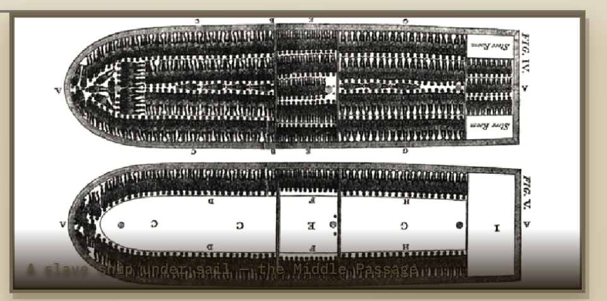
02 / 10

SLAVERY & THE RACIAL ORDER

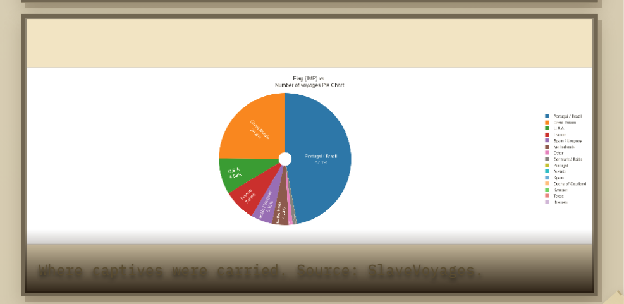
Built to extract labor from Black bodies — and deny their humanity.

Enslaved people were deemed property, not persons: a fabricated rationale that kept the economic engine running. **Counterpoint:** only a tiny share of Africans in the Atlantic trade landed in North America.

12.5M FORCED INTO THE ATLANTIC TRADE · **~10.7M** DISEMBARKED ALIVE IN THE AMERICAS



A slave ship under sail — the Middle Passage



Where captives were carried. Source: SlaveVoyages.

ASK *If most enslaved Africans went elsewhere, why focus on the U.S.?*

SRC · SlaveVoyages · PBS, “How Many Slaves Landed in the U.S.?”

1865 · ABOLITION & EXCEPTION

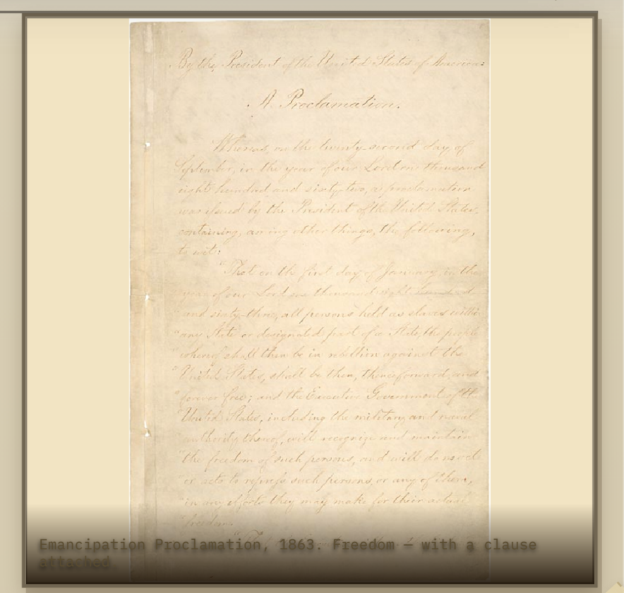
03 / 10

THE 13TH AMENDMENT LOOPHOLE

Emancipation arrived with an exception written into it.

The clause closes one door and leaves another open. Read it slowly — especially the comma before **“except.”** This is the hinge of the whole board.

> *Neither slavery nor involuntary servitude, except as a punishment for crime … shall exist within the United States.*
>
> U.S. CONST. AMEND. XIII, § 1 (1865)



Emancipation Proclamation, 1863. Freedom — with a clause attached.

ASK *What does an exception do to a promise?*

SRC · U.S. Constitution, amend. XIII · National Archives

1865–66 · RECONSTRUCTION

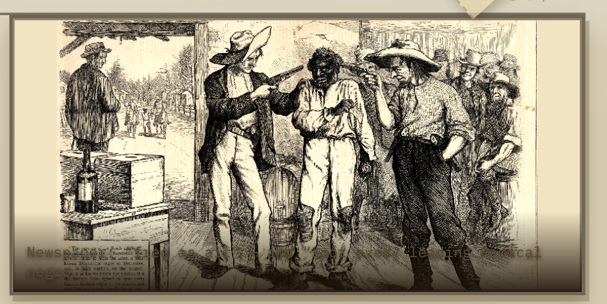
04 / 10

BLACK CODES & VAGRANCY

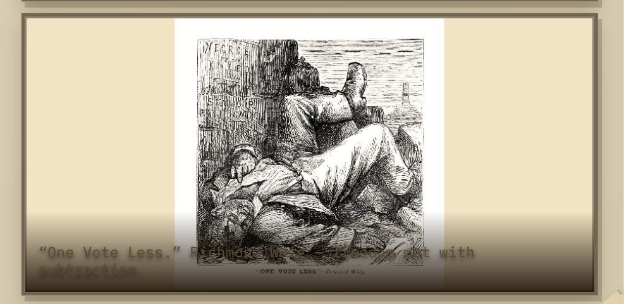
Freedom was re-criminalized. Black life became presumptively illegal.

Unemployment, loitering, migration became crimes. Any infraction — even an unpaid fine — rolled into forced labor. **Same machine, new form.**

> *…convicted of petty crimes, like walking on the grass, vagrancy, and stealing food… Even those declared innocent were often placed in this system when they could not pay their court fees.*
>
> NEWSPAPER ACCOUNT, LIBRARY OF CONGRESS — DATE TO VERIFY



Newspaper [illegible] Radical [illegible]


“ONE VOTE LESS.”—Richmond Whig.

“One Vote Less.” Richmond Whig — freedom, met with subtraction.

ASK *Can you be free if your freedom is a crime?*

SRC · Studies in American Political Development (Cambridge UP) · LOC, Chronicling America (date under review)

1868–1940S · “SLAVERY BY ANOTHER NAME”

05 / 10

CONVICT LEASING

The plantation was rebuilt behind prison walls — and it turned a profit.

States leased Black convicts to plantations, mines and railroads. Brutal mortality produced profit for the state and for industry. **By 1900** Black people were a large majority of Southern convicts.

~73% ESTIMATED SHARE OF ALABAMA'S STATE REVENUE FROM CONVICT LEASING, LATE 1800S (APPROX.)

$700 REWARD
DESCRIPTION
CHATTAHOOCHEE BRICK CO
AVERY BATES

Reward [illegible] escaped convicts from the Chattahoochee brick works

Convict laborers with shovels, early 1900s.

ASK *What is the difference between owning a person and renting their punishment?*

SRC · Blackmon, Slavery by Another Name · Alabama Archives · LOC, Inside Adams

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1890S–1960S · JIM CROW

06 / 10

THE ACCUSATION

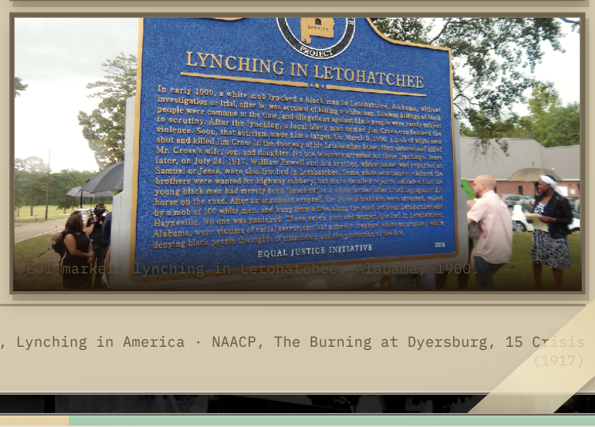
Criminal accusation became the justification for racial terror.

The “Black rapist” myth — manufactured in media and politics — justified chain gangs, racialized policing and lynching. No trial. No evidence. Just the charge. **Graphic photographs omitted by design.**

~4,400 DOCUMENTED RACIAL-TERROR LYNCHINGS OF BLACK PEOPLE, **1877–1950** (EJI)

WHITE
COLORED

Segregated fountain: “WHITE” / “COLORED.”



LYNCHING IN LETOHATCHEE

In early 1900, a white mob lynched a black man in Letohatchee, Alabama, without investigation or trial, after he was accused of killing a white man. Lawless killings of black people were common at the time, and allegations against black people were rarely subject to scrutiny. After the lynching, a local black man named Jim Cross condemned the violence. Soon, that activism made him a target. On March 3, 1900, a mob of white men shot and killed Jim Cross in the doorway of his Letohatchee home, then entered and killed Mr. Cross's wife, son, and daughter. No one was ever arrested for these lynchings. Years later, on July 24, 1917, William Powell and his brother, whose name was reported as Samuel or Jesse, were also lynched in Letohatchee. Some white newspapers claimed the brothers were wanted for highway robbery, but more detailed reports indicated that the young black men had merely been “insolent” to a white farmer after brushing against his horse on the road. After an argument erupted, the Powell brothers were arrested, seized by a mob of 100 white men, and hung from a tree along the road between Letohatchee and Hayneville. No one was punished. These seven men and women lynched in Letohatchee, Alabama, were victims of racial terrorism that aimed to restore white supremacy while denying black people the rights of citizenship and the protection of the law.

EQUAL JUSTICE INITIATIVE 2016

EJI marker: lynching in Letohatchee, Alabama, 1900.

ASK *Why did the accusation matter more than the evidence?*

SRC · EJI, Lynching in America · NAACP, The Burning at Dyersburg, 15 Crisis (1917)

1971–PRESENT · WAR ON DRUGS

07 / 10

LAW & ORDER → MASS INCARCERATION

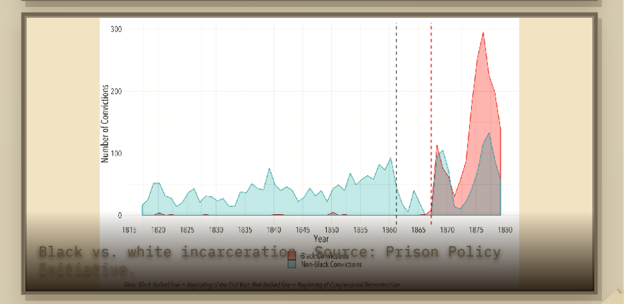
“Law and order” became the new racial control.

1971 War on Drugs. 1986 Anti-Drug Abuse Act (100:1 crack-to-cocaine). 1994 Crime Bill. Mandatory minimums. Selective enforcement.

> *“We could arrest their leaders, raid their homes… Did we know we were lying about the drugs? Of course we did.” — John Ehrlichman (attributed/reported; disputed)*

~5% / ~25% U.S. SHARE OF WORLD POPULATION VS. WORLD PRISONERS · BLACK PEOPLE: **~13%** OF THE POPULATION, **37%** OF THE INCARCERATED

Dr. King arrested — the “law and order” era.



Black vs. white incarceration. Source: Prison Policy Initiative.

ASK *Can a law be race-neutral and still racist?*

SRC · EJI · Prison Policy Initiative · ACLU-WA · World Prison Brief

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2000S–PRESENT · THE ALGORITHM

08 / 10

PLANTATION → ALGORITHM

The overseer's variable judgment became the algorithm's baked-in bias.

COMPAS recidivism scoring, predictive policing, facial recognition. The bias moves from a person to a system that hides behind math — **race-neutral on paper, not in outcome.**

2× BLACK DEFENDANTS FLAGGED HIGH-RISK AT TWICE THE RATE OF WHITE DEFENDANTS **(PROPUBLICA, 2016)**

10–100× HIGHER FACIAL-RECOGNITION FALSE POSITIVES FOR BLACK AND ASIAN FACES **(NIST, 2019)**

ROBERT CANNON
MEDIUM RISK
6

COMPAS-style risk assessment — page 1

JAMES RIVELLI
LOW RISK
3

COMPAS-style risk assessment — page 2

ASK *If the algorithm cannot see race, how does it reproduce racism?*

SRC · ProPublica, “Machine Bias” (2016) · NIST FRVT (2019)

BRAZIL & ARGENTINA · 1871–PRESENT

09 / 10

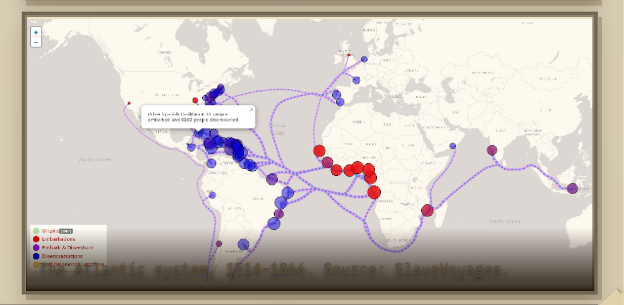
FREE, BUT BOUND

The U.S. is one example of a Diaspora pattern: emancipation produces new coercion.

Brazil's **Law of the Free Womb** (1871) “freed” newborns but bound them to their masters until 21. Argentina's **liberto** system conditioned freedom on military service. Afro-Argentine history was written out.

21 YEARS BRAZIL'S “FREE” CHILDREN REMAINED BOUND TO THEIR MASTERS

Afro-Argentine candombe, Buenos Aires.


Other Spanish Caribbean: 51 people embarked and 6163 people disembarked.
Origins
Embarkations
Embark & Disembark
Disembarkations

The Atlantic system, 1514–1866. Source: SlaveVoyages.

ASK *What does “free” mean when freedom is conditioned?*

SRC · Phillips, The African Diaspora Experience · Cambridge UP · African Arguments

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1791–PRESENT · RESISTANCE & ERASURE

10 / 10

SAME STRUGGLE. NEW TERRAIN.

Every system of control met organized resistance — and the fight over memory is the latest front.

RESISTANCE

1791
HAITI
Toussaint Louverture; the revolution that ended slavery in 1804.

1847
NORTH STAR
Douglass: “Right is of no sex — Truth is of no color.”

1863
COMBAHEE
Tubman's raid frees ~800 people in one night.

1878
FIREBURN
Queen Mary Thomas, Agnes and Matilda lead the uprising.

MEMORY / ERASURE

1921
TULSA
~35 blocks burned; 100–300+ killed (official count 36); erased for decades.

1985
MOVE
Philadelphia bombs a home from the air — and the record is contested.

THE NAME CHANGES. THE FUNCTION DOES NOT.

ASK *Whose memory is kept, and whose is erased?*

SRC · Zinn Education Project · National Archives, Tulsa · UPenn, MOVE · Digital Howard, North Star

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KEY

CLICK ANY SYMBOL OR PANEL TO OPEN THE FILE

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